Revision Date:
September 1, 2019

Background:
Confidentiality regulations were created to protect customers against identification, exploitation, or stigma that could result from the release of information identifying them as having applied for or received public assistance. These regulations are outlined in the State CDSS Manual of Policies and Procedures (MPP) Division 19-000.

MPG Article 2, Section 1 provides staff with policies and procedures regarding the confidentiality of HHSA Medi-Cal case records and release of information to qualified agencies, people, and Medi-Cal providers.

The unauthorized release and possession of confidential information is a violation of MPP confidentiality regulations and can be prosecuted as a misdemeanor.

Purpose:
This section is revised to include information from Medi-Cal Memo 15-35 and to update to the current format.

Policy:
Policy and Procedures Governing Confidentiality:
HHSA employees are encouraged to respond to inquiries by providing information regarding HHSA policies and procedures. However, care must be taken to preserve the confidentiality of HHSA case records. All reference to “case records” includes all documents, forms, and communications, including those stored electronically.

Prior to the release of confidential information to other agencies or individuals, review the policies and procedures detailed in this Article, the Confidentiality Eligibility Policies and Procedures Guide (EPPG), and, when necessary, MPP 19-000.

Unauthorized disclosure of confidential information by a County employee is a misdemeanor and may lead to criminal or civil liability for both County employees and the County. The County may also take disciplinary action against the employee.

Information that Is Confidential:
All information in case records, including names, addresses, and eligibility information about the circumstances of any customer, including whether that person is a customer, is confidential and must be safeguarded. This applies to all information obtained from, for, and about all customers, whether received in writing or orally.

Do not disclose confidential information for any purposes not directly related to the administration of public social services programs or as noted in this Article.

Information that Is Not Confidential:
Statistical information and social data which is not identified with an individual may be released. Examples of information that may be released include, but are not limited to, such information as statements on the number of beneficiaries, total expenditures per program or administration, average grant amount figures, and other general information about the caseload.

Avoiding a Breach in Confidentiality for ACA Cases:
When any of the following items are entered in CalWIN for an individual, the individual will be added to the CalHEERS case and the family could receive notices with their information:

- "Yes" for the field "In Home"
- "Yes" for "Requesting Assistance"
- Added to the "Tax Filer" window.

If the individual is not in the home or is not requesting, confidential information may be released erroneously to or about this individual.

To prevent a breach in confidentiality, carefully review entries for every individual listed in a case and ensure that these entries are populated with the appropriate values.

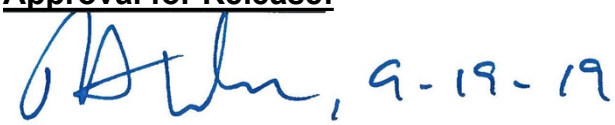
Procedure:
Follow the policies above to maintain confidential information.

Other Program Impacts:
None.

References:
MPP 19-000
MEPM 2H

Sunset Date:
This policy will be reviewed for continuance by 09/31/2022.

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Handling of Case Records	Number	Page
	2.1.2	1 of 2

Revision Date:
September 1, 2019

Background:
Case records are the original and permanent records of HHSA and are maintained for reference and audit purposes to document eligibility. Case records and original documents should be at the assigned Family Resource Center (FRC) or electronically stored in the imaging system and CalWIN. Unless approved by the FRC Manager, no case record, whether hard copy or electronic copy, will be removed from HHSA. The customer's case record must only contain facts relevant to the case.

Purpose:
This section is updated to the current format.

Policy:
Routing of Case Records for Official Use:
When requested, case records may be routed to other divisions or administrative staff for official use (for example, QESD, BPAI, DHCS Investigations, Appeals, Fiscal, Internal Investigations, etc.). The routing of case records to other divisions or administrative staff for official use does not require approval from the FRC Manager.

State and Federal Quality Control may view HHSA records for their reviews without prior approval. The requests for cases may be made directly to the FRC or through the Corrective Action Coordinator.

MEDS Screens:
DHCS' policy is that only individuals who have a MEDS ID may view MEDS screens, including MOPI. The table below shows what to do if a request is received to view MEDS screens or screen prints.

If the requestor is a …	Then …
Customer, Authorized Representative (AR), Representative, Conservator	Deny the request.
Provider	Refer to MPG 14.4.

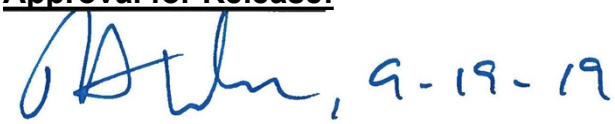
Procedure:
Follow the policies above to maintain confidential information.

Other Program Impacts:
None.

References:
MPP 19-000
ACWDL 08-04

Sunset Date:
This policy will be reviewed for continuance by 09/31/2022.

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Revision Date:
September 1, 2019

Background:
Confidential information may only be released for either reason below:

- For the purposes directly connected with the administration of public social services program
- As authorized by the customer.

This section will not prohibit the release of information to other public agencies to the extent required for verifying eligibility. Document in the case record all information and the disposition of the request.

Purpose:
This section is updated to the current format.

Policy:
Authorized Disclosure List:
Confidential information may only be released without the consent of the customer for purposes directly connected with the administration of public social services programs except as specified under MPG 2.1.6 Law Enforcement Officials.

In addition to HHSA staff of this county and their counterparts in other counties or states, the following agencies and/or people are authorized to receive or exchange confidential information without the consent of the customer when the request is for a purpose connected with the administration of the public social services program.

The list is not intended to be complete and/or result in the automatic disclosure of information to people or agencies on the list. The list provides a quick reference of people and agencies that most frequently make authorized inquiries.

- Auditor and Controller (County, State, and Federal)
- County Counsel (except for investigations of Worker's Compensation claims or other questionable situations)
- Department of Health and Human Services (County, State, and Federal)
- Department of Health Care Services (State and Federal)
- District Attorney – BPAI, FSD, Welfare Employee Fraud Prosecutions, Child Support Prosecutions only
- Grand Jury
- Housing Authorities
- Juvenile Probation Department (for billings on AFDC Foster Care cases)
- Mental Health Services
- Revenue and Recovery
- Social Security Administration

Contact HHSA Eligibility Operations Medi-Cal Program when there is doubt as to the propriety of releasing any program specific information.

Required Authorization Prior to Release:
Unless otherwise provided under "Telephone Authorization," all authorizations must be written and must be obtained by the worker prior to the release of confidential information to agencies and people not listed on the Authorized Disclosure List.

Under no circumstances release medical (health) information from the case based on the customer's oral authorization.

Written authorization from the customer is always required prior to releasing medical information to a third party. Refer to MPG 2.1.6 Privileged Communication – Physician/Patient about additional requirements to release medical information from a case record.

Written Authorization:
The following guidelines apply to written authorizations:
- Must be signed and dated by the customer
- Must include a description of the information to be disclosed
- Must include a description of the purpose of the disclosure. "At the request of the individual" or similar language may be accepted if the customer does not wish to describe the purpose of the request
- Must identify the name of the individual or organization authorized by the customer to receive such information
- Expires one year from the date signed unless expressly limited to a shorter period
- May be revoked by the customer at any time
- Accept photocopies of the written authorization.

Telephone Authorization:
Accept telephone authorization in lieu of written authorization where the circumstances ensure that the customer has positively identified himself/herself to the County. Acceptable items of identification may include case number, driver's license number, Social Security number, or date of birth.

The following guidelines apply to telephone authorizations:
- Is temporary and good for only that phone call
- Does not apply to medical (health) information from a case
- Should be followed by a written authorization
- Must be documented in the case
- The customer's oral agreement to provide a written authorization must be documented in the case along with the date that the release form was sent to the customer.

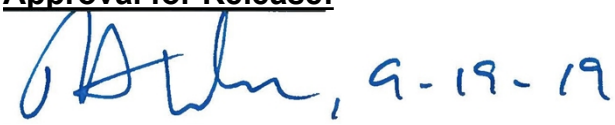
Procedure:
Follow the policies above to maintain confidential information.

Other Program Impacts:
None.

References:
MPP 19-000
MEPM 2H
County Policy

Sunset Date:
This policy will be reviewed for continuance by 09/31/2022.

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Revision Date:
September 1, 2019

Background:
This section provides instructions for what information may be released to a customer and/or their Authorized Representative (AR).

Purpose:
This section is updated to the current format.

Policy:
Information Which May Be Released:
Information contained in applications or other documents made or kept by HHSA may be released to the customer or his/her AR only if both Conditions 1 and 2 are met:

Condition 1:
- The customer has authorized the release of the information;

And

Condition 2:
- The information was provided solely by the customer (for example, income verifications); or
- The customer authorized HHSA to obtain the information (for example, bank verification requests).

Information Which May Not Be Released:
Information provided confidentially to HHSA by a third party and not provided solely by the customer will not be reviewed or disclosed to the customer or his/her AR. This includes:

Type	Description	Guidelines
DHCS Investigations/ BPAI Reports	All reports, summaries, and other confidential communications or information obtained by DHCS Investigations/BPAI in the process of investigation of an alleged fraud.	Do not release or allow customer or his/her AR to view. Note: If DHCS Investigations/BPAI reports plan to be or are being offered as evidence in a State Fair Hearing, they are subject to customer and/or AR review to permit preparation for the hearing.
Informant Identity	The identity of the informer.	• Do not disclose to the customer or his/her AR • Refer questions to DHCS Investigations.

Other Privileged Communication:
The following information is classified as other privileged communication. Handle such information as follows:

Type	Description	Disclosed Only When
Physician/Patient	Confidential communication from a physician	Specific written consent from the patient is obtained.

Physician/Patient	Confidential communication from a physician and the physician requested that the report not be released to the patient	Physician's consent to release and specific written consent form the patient is obtained.
Lawyer/Customer	Matters of confidential communication between a lawyer and customer	Specific written consent from the customer is obtained. However, make no contact with the customer about privileged communications when they have legal counsel in any matter in which the County is a party (for example, State Fair Hearing or petitions for judicial review).
Husband/Wife	Confidential communication between husband and wife during their marital relationship	Written consent from both husband and wife is obtained, even if the marriage has terminated.

Income Eligibility Verification System (IEVS):
Case information obtained through IEVS requires special handling to protect the confidentiality of IEVS information which may have been mismatched to the customer. Follow the guidelines below in handles IEVS reports:

If the IEVS reports …	**Then …**
Verify information previously reported by the customer,	• The report is classified as verifications authorized by the customer • Information on the report may be released to the customer.
Do not appear to pertain to the customer,	• The report is classified as information provided confidentially by a third party • Information on the report may not be released until the discrepancy has been clarified and the accuracy confirmed.
Contain previously unreported information,	

For IEVS reports with a discrepancy, enough information from the reports may be provided to the customer to allow the customer to obtain additional verification and/or clarification.

Example: EDD reports a match of SSN to a UIB recipient. The name does not match, and the customer claims no UIB income. The EDD Field Office number from the report may be provided to the customer to aid EDD in clarifying the discrepancy. The name of the UIB recipient shown on the report may not be released.

Requests for Photocopies/Printouts from Case Record:
Process requests for items in the case record from the customer or as authorized by the customer as follows:

If the request is …	Then …
For a specific item or items in the case record (for example, birth certificate, ID, SSN card, etc.),	Provide photocopies or printouts of the requested item(s).
A general request (for example, the case file),	Do not provide photocopies or printouts.

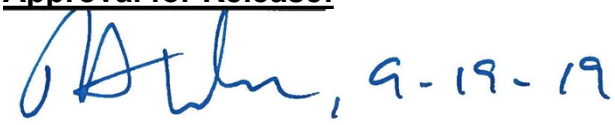
Procedure:
Follow the policies above to maintain confidential information.

Other Program Impacts:
None.

References:
MPP 19-000

Sunset Date:
This policy will be reviewed for continuance by 09/31/2022.

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Revision Date:
September 1, 2019

Background:
This section provides instructions for what information may be released to another entity

Purpose:
This section is updated to the current format and adds information from Memo 18-07, which is now obsolete.

Policy:
General Guidelines:
Use the following guidelines when handling requests for information from specific groups and/or individuals:

If the request for information is …	Then …
Questionable or unreasonable (not related to the responsibilities of the requesting office),	**Step** / **Action** 1 – Obtain a written statement about the request and circumstance of the request from the requesting entity. 2 – Forward the written statement to the FRC Manager for review and approval/ disapproval of the request. When necessary, the FRC Manager will forward the request to the Chief for further review and approval/ disapproval.
On a closed case,	Refer the requesting entity to Access.
On an active case,	Process the request for information for entities and people not listed on the Authorized Disclosure List using the procedures below.

Absent Parents, Family, or Friends:
Obtain a written consent from the customer prior to releasing information to absent parents, the customer's family, or friends. In handling such request, follow the procedures below:

Step	Action
1	Do not acknowledge to the requesting person that the customer or the customer's child(ren) have applied for or are receiving aid or services.
2	Advise the requesting person that he/she must submit a written request for any information including his/her address and phone number.
3	Notify the customer of the request for information upon receipt of the written request. **If the customer …** / **Then …** Wants to provide the information directly to the requesting person, – Document resolution in the case. Is willing to provide the written

authorization for the release of the requested information,	**Step** / **Action** 1 — Request proof of identity from the requesting person. 2 — Obtain written authorization for release of information from the customer. 3 — Process the request for information only when the identity of the requestor and written authorization from the customer are received.
Does not want to provide the information to the requesting person,	Do not release any information to the requesting person. The requesting person, at his/her own discretion, may contact the DA or private attorney and use legal recourse.

If an absent parent claims that the aided parent has kidnapped, abused, or neglected the child(ren), refer the case to Child Welfare Services for appropriate action. Report the claim to the Child Abuse Hotline (858-560-2191). Provide the absent parent with the hotline number for future use.

Board of Supervisors and Other Legislative Entity:
Refer all inquiries from the Board of Supervisors or other legislative entities to the FRC Manager for resolution. These inquiries may include, but are not limited to:

- General request for information on program or FRC procedures
- Request based on complaints by a customer about HHSA handling of his/her case
- Request based on an anonymous complaint about case handling or to a customer.

Follow the procedures below for processing such inquiries:

Step	Action
1	Determine if the inquiry can be responded to or issue is resolved without releasing confidential information about a customer. **If …** / **Then …** Yes, — Provide general program information or information about FRC procedures. No, — Proceed to Step 2 as the customer's authorization for release of information is required.
2	Determine if the Board of Supervisors or Legislative entity received a written request/ inquiry for assistance from the customer about his/her application or eligibility for public social services. **If …** / **Then …**

	Yes,	Obtain a copy of the written request/inquiry for assistance from the Board of Supervisors or Legislative entity and proceed to Step 3.
	No,	Obtain oral or written authorization from the customer and proceed to Step 3.
3	Respond to the inquiry with the proper authorization documentation on file, releasing only information enough to answer such an inquiry. Proceed to Step 4 only if the issue or result cannot be resolved.	
4	Contact the Chief for additional clarification and direction needed to respond to the inquiry.	

Businesses:
Release of information to businesses is only authorized when HHSA has a written and dated authorization from the customer. Valid business inquiries may include grant and address information to establish a customer's credit but do not include inquiries to pursue collection on a delinquent account.

Defense Attorney:
Refer requests from defense attorney, including Legal Aid Society and the Public Defender, which does not include a customer authorized release, to EO for an explanation on how to subpoena records.

Law Enforcement Officials:
Confidential information about a customer may be released to a state or local law enforcement agency only in the course of investigations, prosecutions, civil/criminal proceedings directly related to the administration of the Medi-Cal Program.

All types of information, written or oral, is confidential and is not open to examination other than for purposes directly connected with the administration of the Medi-Cal Program, such as conducting or assisting an investigation, prosecution, or civil/criminal proceeding related to the administration of the Medi-Cal Program. The non-disclosure policy applies to all requests for information, including those from other government agencies, the courts (unless ordered by the court to do otherwise), and law enforcement officials.

Follow the procedures for processing inquiries from law enforcement officials below.

If the inquiry is …	**Then …**
Associated with an investigation, prosecution, civil/criminal proceeding directly related to the administration of the Medi-Cal Program,	Release the information to the requesting law enforcement official. Customer's consent is not required.
For information from a Medi-Cal case record of a deceased customer,	Do not release the information to the requesting law enforcement official.
For information from a Medi-Cal case record of customers with	Do not release the information to the requesting law enforcement official.

outstanding felony and/or misdemeanor arrest warrants,	Refer questions in this regard to DHCS Investigations.

Medi-Cal Providers:
Limited beneficiary eligibility information will be given to Medi-Cal providers when requested. Medi-Cal providers include:

- Hospitals
- Primary Care Clinics
- Managed Care Plans
- Private Providers
- County Medical Services (CMS)

If the eligibility information requested is within the last 12 months, encourage the provider to use the POS system to verify eligibility. Refer to MPG 14.3 if the information requested is for a period over one year from the date of the request.

Process requests received from Medi-Cal providers as shown below:

If the Medi-Cal provider is asking for …	**Then …**
Client Identification Number (CIN) or Benefits Identification Card (BIC) information,	Provide the information.
Date of Birth,	
Other health coverage,	
Medicare coverage,	
Any restricted status,	
Eligibility status for specific month(s),	Indicate if the individual is eligible or ineligible, share of cost, and LTC status.
Reason for ineligibility,	Do not release the information, unless written authorization from the beneficiary is in the case.

Third-Party Contracted Staff/Application Assistors at Hospitals:
Third-Party contracted staff/application assistors at hospitals may act as the agent of a Medi-Cal provider (including hospitals) for certain authorized activities. Information cannot be provided without a signed release from the customer.

Public Administrator:
In San Diego County, the Public Administrator is the Indigent Burial Officer and operates the Indigent Burial Program as an agent of HHSA. Information from Medi-Cal records may be released to the Public Administrator when the information is needed for the operation of the Indigent Burial Program. Consent of the customer is not required.

Private Organizations/People:

Inform private organizations and people not on the Authorized Disclosure list who request information, including whether a person is receiving or has received aid, about regulations about confidentiality of case records. Often, general statistical or specific program information can resolve the inquiry. Evaluate all unauthorized inquiries for referral to other agencies or offices. Refer media inquiries directly to the FRC Manager, who will refer the media to the Office of Public Relations.

Research Organization:
Before gaining access to case records, research organizations or graduate students conducting research for a thesis or term paper must have prior approval from an assistant deputy director from EO. The Knowledge Center has responsibility for submitting research proposals to the assistant deputy director.

Other Requests:
Refer confidential questions or requests for release of information not addressed in this Article to the FRC Manager for review. Unauthorized disclosure of confidential information may render the County and/or staff liable for criminal and civil suits.

Procedure:
Follow the policies above to maintain confidential information.

Other Program Impacts:
None.

References:
W&I 10850.3d and 10850.7c
MPP 19-000
MEPM 2H
ACWDLs 08-04 and 00-43

Sunset Date:
This policy will be reviewed for continuance by 09/31/2022.

Approval for Release:
9-19-19
Rick Wanne, Director
Eligibility Operations

Inspection of Case Records	Number	Page
	2.1.7	1 of 2

Revision Date:
September 1, 2019

Background:
Authorized people requesting review, as well as those authorized to make the inspection, must agree to the HHSA review procedures listed below before being allowed access to the case record.

Authorized people requesting review in preparation for a State hearing will be subject to these HHSA review procedures. If a more extensive review is requested, the customer should be referred to the Appeals section to schedule an appointment.

Purpose:
This section is updated to the current format.

Policy:
Processing Requests for Inspection of Case Records:
Forward all requests for inspection of case records (except for those from customers/Ars during an appeal) to Regional Support. This applies to requests on closed and active cases.

Upon receipt of the request, Regional Support will coordinate with the FRC that has the assigned case and the customer or his/her AR for the case inspection.

HHSA Case Review Guidelines:
Guidelines on inspection of case records are as follows:

- The complete case record, including case comments, will be made available for inspection, except for privileged information which may not be released to the customer or his/her AR.
- For case comments, a thorough review of case comments must be conducted and any comments which contain privileged information must be removed prior to the case inspection.
- Privileged information which may not be released if required consent has not been obtained, must be removed from the case before any review by the customer or his/her AR.
- Case inspection will be permitted only during normal working hours.
- FRCs will make a private room available for record review where staff and customer and/or AR may discuss case contents.
- No case will be made available unless a staff member is present during the entire period of examination except for requests made to the Appeals section for cases in the State hearing process.
- The reviewers will not be permitted to remove, alter, photocopy, print, or photograph anything in case records. Reviewers may photocopy or print items necessary to prepare for the State Hearing for cases in Appeals.
- The reviewers will be permitted to make notes on what they see in the case record.
- Requests for photocopies or printouts of specific items will be processed.
- Requests for photocopies or printouts of general requests (for example, the case file) will not be processed.
- Provide printed MPG sections upon request. Provide the url (web address) to the Medi-Cal Program Guide if the customer and/or AR request viewing at a location other than the FRC.

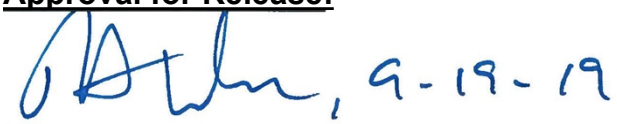
Procedure:
Follow the policies above to maintain confidential information.

Other Program Impacts:
None.

References:
County Policy

Sunset Date:
This policy will be reviewed for continuance by 09/31/2022.

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Court Appearances - Subpoenas	Number	Page
	2.1.8	1 of 1

Revision Date:
September 1, 2019

Background:
This section has been moved to the Procedures for Accepting Subpoenas and Writs of Mandate Eligibility Policy and Procedures Guide.

Purpose:
This section is updated to the current format.

Policy:
See the Procedures for Accepting Subpoenas

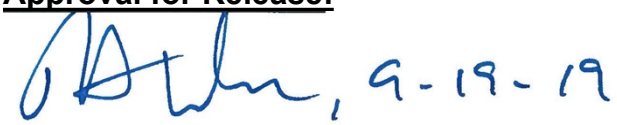
Procedure:
Follow the policies above to maintain confidential information.

Other Program Impacts:
None.

References:
County Policy

Sunset Date:
This policy will be reviewed for continuance by 09/31/2022.

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Collateral Contacts	Number	Page
	2.1.9	1 of 1

Revision Date:
September 1, 2019

Background:
This section provides instructions for collateral contacts.

Purpose:
This section is updated to the current format.

Policy:
To protect the confidentiality of an individual public assistance customer, the individual must be given the opportunity to provide needed information or verifications in a manner which does not identify the individual as a public assistance customer.

Before a collateral contact is initiated, inform the customer of his/her option to obtain the needed information himself/herself without any requirement to use county forms or form letters. Except for CDHS/BPAI staff, the customer's written consent must be obtained prior to initiating collateral contacts.

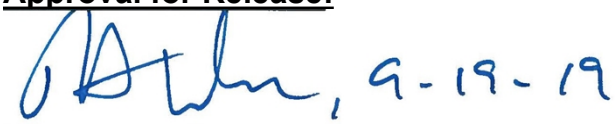
Procedure:
Follow the policies above to maintain confidential information.

Other Program Impacts:
None.

References:
County Policy

Sunset Date:
This policy will be reviewed for continuance by 09/31/2022.

Approval for Release:



Rick Wanne, Director
Eligibility Operations